

Charly Privacy Policy

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Introduction

This Privacy Policy explains how Joseph Phillips trading as Charly AI (“Charly”, “we”, “us”) collects, uses, stores, and protects personal information in connection with the Charly platform.

Charly is an AI-powered English conversation practice platform provided to schools and education providers (“Schools”). Schools enrol their students on the platform; students use the Charly app to practise spoken English, and teachers review transcripts, recordings, and feedback through the Charly teacher portal.

This policy is addressed primarily to Schools as our customers, but it describes how we handle the personal information of everyone whose data passes through the platform, including students and teachers. We handle personal information in accordance with the Privacy Act 1988 (Cth) and the Australian Privacy Principles (APPs).

Information We Collect

We collect the following categories of personal information:

- **Account and contact information** for School staff: names, email addresses, and role (for example, teacher or administrator)
- **Student information** provided by the School: student names, assigned conversation topics, grammar focus, and CEFR level
- **Voice recordings** of student conversations with the Charly AI
- **Conversation transcripts** generated from those calls
- **Usage data**: call timestamps, call duration, weekly minutes used, and call history
- **Feedback and learning data**: AI-generated feedback reports and summarised facts about a student’s progress used to personalise future conversations

We do not deliberately collect sensitive information (such as health, racial, or religious information). Students may, however, mention personal details during free conversation. Schools and students should be aware that conversations are recorded and transcribed.

How We Collect It

Most information is provided to us directly by the School when it sets up its account and enrolls students. Voice recordings, transcripts, usage data, and feedback are generated automatically when a student uses the Charly app to make a call.

Why We Collect and Use It

We collect and use personal information to:

- Provide the Charly platform and deliver English conversation practice
- Generate transcripts and feedback reports for teachers
- Personalise conversations using a student's level, focus areas, and past conversation history
- Manage School accounts, enrolment, and billing
- Maintain, secure, and improve the platform
- Communicate with Schools about their account and the service

We may use anonymised, aggregated data derived from platform usage to improve our services, provided that no individual student can be identified from it.

We do not use personal information for advertising, and we do not sell personal information to anyone.

Children's and Students' Information

Many students using Charly are minors. Charly does not enrol students directly. Students are enrolled by their School, and the School is responsible for:

- Obtaining appropriate consent before enrolling students, including consent from a parent or legal guardian where a student is under 18
- Ensuring its collection and sharing of student information with Charly complies with applicable privacy laws

We rely on the School to have obtained this consent. We handle students' information with the same care as all personal information described in this policy and only for the purposes of delivering the service.

Third-Party Service Providers

To deliver the platform, we share limited information with trusted third-party providers who process data on our behalf:

- **Voice AI processing:** a conversational AI voice provider processes student speech in real time to enable the conversation and produce recordings and transcripts
- **AI feedback generation:** an AI language-model provider processes transcripts to generate feedback reports and progress summaries
- **Cloud hosting and storage:** reputable cloud infrastructure providers host the platform and store data, including recordings and transcripts
- **Email delivery:** an email service provider is used to send account and service-related emails

These providers are engaged to process data only for the purposes of delivering the Charly service and are subject to their own security and confidentiality obligations. Some of these providers may store or process data outside Australia. Where that occurs, we take reasonable steps to ensure the information is handled consistently with the Australian Privacy Principles.

Storage and Security

Data is stored securely with reputable cloud providers. We take reasonable steps to protect personal information from misuse, interference, loss, and unauthorised access, modification, or disclosure.

Access to student recordings, transcripts, and feedback within the teacher portal is restricted to authorised staff of the relevant School.

No method of transmission or storage is completely secure. While we take reasonable steps to protect personal information, we cannot guarantee absolute security.

Data Retention

We retain personal information for as long as it is needed to provide the service to the School, and as required to meet our legal and operational obligations.

When a School removes a student from its portal account, or when a School ceases using the platform, we will retain or delete the associated data in accordance with our retention practices and any agreement with the School. A School may request deletion of its data by contacting us (see below).

Data Breaches

In the event of a data breach that is likely to result in serious harm to any individual, we will notify the affected parties and the Office of the Australian Information Commissioner in accordance with the Notifiable Data Breaches scheme under the Privacy Act 1988 (Cth).

Access, Correction, and Complaints

Individuals, or Schools on their behalf, may request access to or correction of personal information we hold, or request that data be deleted, by contacting us at joe@callcharly.io. We will respond within a reasonable period.

If you have a privacy concern or complaint, please contact us first at joe@callcharly.io and we will work to resolve it. If you are not satisfied with our response, you may contact the Office of the Australian Information Commissioner (oaic.gov.au).

Changes to This Policy

We may update this Privacy Policy from time to time. The current version will always be available at callcharly.io. Material changes affecting Schools will be communicated to the School's nominated contact.

Contact

For any questions about this Privacy Policy or how we handle personal information, contact:

Joseph Phillips trading as Charly AI
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This document should be reviewed by a qualified Australian lawyer before use.